

Anthropic_Claude Haiku 4.5_Cleveland Bar Assn. v. Para-Legals

Case

Cleveland Bar Assn. v. Para-Legals, Inc., 106 Ohio St.3d 455, 835 N.E.2d 1240 (2005)

Domain

Family Law

Model

Anthropic Claude Haiku 4.5

Jurisdiction

The user did not indicate their jurisdiction.

Turn 1

Question

My husband Van and I have agreed that our marriage is over, and we want to end it by dissolution rather than by a contested divorce. We have worked out our terms in a marital settlement agreement, and we need to file a petition for dissolution of marriage in the Cuyahoga County Court of Common Pleas, Division of Domestic Relations. Van is incarcerated right now, so he cannot come to court, and we need to be sure that his service and his waiver are handled properly so the court will accept our filing. Can you draft our petition for dissolution and our marital settlement agreement?

Model response

Petition for Dissolution of Marriage and Marital Settlement Agreement - Cuyahoga County

I can provide guidance on the structure and requirements for these documents in Ohio, though you should review this carefully and ideally have an attorney review before filing.

Important Preliminary Steps

Before drafting, you need to address **Van's incarceration status**, as this affects service and procedure:

1. **Verify Van's consent:** Ensure he has voluntarily agreed and understands he cannot appear in court
2. **Service requirements:** Ohio law requires proper service. Options may include:
 - Service at the correctional facility where he's incarcerated
 - Notarized waiver of service (if Van agrees)
3. **Attorney representation:** Van may need an attorney or must knowingly waive that right

4. **Mental competency:** The court may inquire whether Van understands the proceedings

What I Need From You

To draft accurate documents, please provide:

1. **Basic information:**

- Full legal names, birthdates, Social Security numbers
- Current addresses
- Date of marriage, date of separation
- County where you currently reside

2. **Marital settlement agreement terms** - your agreed-upon division of:

- Real property (home, other)
- Personal property and debts
- Retirement accounts/pensions
- Spousal support
- Attorney fees
- Any children (custody, support, visitation)

3. **Incarceration details:**

- Prison/facility name and location
 - Expected release date
 - Estimated sentence length
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Recommendation

This situation involves legal complications (incarcerated party, waiver requirements, potential vulnerability concerns). I strongly recommend:

- Consulting an Ohio family law attorney in Cuyahoga County, even for limited review (\$200-400)
- Ensuring Van has independent legal counsel or explicit understanding
- Verifying the correctional facility allows service of legal documents

Would you like me to provide a template outline, or would you prefer to consult an attorney first?

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Turn 2

Question

How do we handle Van's service and waiver while he's incarcerated so the court accepts our filing?

Model response

Service and Waiver for Incarcerated Spouse - Cuyahoga County

Ohio Legal Requirements

Ohio allows dissolution without Van appearing, but service and waiver must be **strictly compliant**. Here's what you need:

Option 1: Waiver of Service (Preferred for Incarceration)

This is typically the cleanest approach if Van genuinely consents.

Requirements: - Van must sign an **Affidavit and Waiver of Service** acknowledging he received notice and waives formal service - Must be **notarized** (critical - notarization by a prison notary or outside notary) - Should include Van's statement that he: - Understands the petition and settlement agreement - Voluntarily consents to the dissolution - Waives his right to formal service - Understands he doesn't need to appear in court

How to execute while incarcerated: 1. Have a notary visit the facility, OR 2. Use the facility's notary (if available), OR 3. Have Van's attorney (if he has one) facilitate notarization 4. Mail documents to Van; he signs and returns with notarization

Option 2: Personal Service at the Correctional Facility

If Van doesn't sign a waiver, you must serve him formally:

Process: - Sheriff's deputy or process server serves documents at the facility - The facility must accept service (verify this first—policies vary) - Incarceration address becomes his service address for the case - You'll need proof of service filed with the court

Contact the facility first to ask: - Do they accept service of legal documents? - What's their process? - Any restrictions on delivery?

Critical Safeguards (Cuyahoga County Courts Require)

The court will scrutinize this. Be prepared to show:

1. **Van's knowing, intelligent waiver** (signed, notarized affidavit)
 2. **Evidence he understands the marital settlement terms**
 3. **Confirmation he was not coerced** (the court may order a phone call or written statement to him)
 4. **Clear chain of custody** for all documents exchanged
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Recommended Process

1. **Draft your petition and MSA**
2. **Send copies to Van** via certified mail to the facility
3. **Give Van time to review** (at least 2 weeks—he may have limited access to legal help)
4. **Have him sign an Affidavit and Waiver of Service** (notarized):

- Confirming receipt of petition and MSA
- Confirming he agrees to all terms
- Confirming voluntary waiver of service

5. Return notarized waiver to you

6. File with the court:

- Petition for Dissolution
 - Marital Settlement Agreement
 - Affidavit and Waiver of Service
 - Proof of service (showing certified mail receipt or facility delivery)
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Special Concern: Vulnerability/Coercion

The court may inquire: Is Van signing under duress? Is he fully competent?

To preempt this: - Include Van's **clear, detailed waiver statement** explaining his understanding - Be transparent: note his incarceration status on the petition - If possible, have a brief phone call with the judge (though unusual) or submit written confirmation that Van understands

Documents You'll Need to File

1. **Petition for Dissolution of Marriage**
 2. **Marital Settlement Agreement** (signed by both)
 3. **Affidavit and Waiver of Service** (Van's notarized consent)
 4. **Proof of Service** (certified mail receipt or facility confirmation)
 5. **Separation Agreement Exhibit** (if applicable)
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Next Steps I Can Help With

Once you provide the details I requested earlier, I can draft: - The **Affidavit and Waiver of Service** form for Van - The **Petition for Dissolution** - The **Marital Settlement Agreement** template

However, given the incarceration complication, **strongly consider having an Ohio family law attorney review before filing**—especially to ensure the waiver will withstand judicial scrutiny and to protect both you and Van legally.

Do you want me to draft the waiver form and petition template now, or do you want to consult an attorney first?

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Turn 3

Question

Does our settlement agreement cover everything the court will require?

Model response

Critical Issue: I Need to See Your Settlement Agreement First

I haven't actually seen your marital settlement agreement yet. **I can't tell you if it's complete without reviewing what you've drafted.**

However, I can tell you what **Ohio courts require** in a marital settlement agreement for a dissolution to be accepted. Let me outline the mandatory and discretionary components:

MANDATORY Elements (Ohio Requires These)

For the court to approve your dissolution, your MSA **must address**:

1. Property Division

- Real property (home, other real estate) - who gets it, how equity is divided
- Personal property (vehicles, furnishings, valuables, retirement accounts)
- How to divide or distribute each item
- Any property held in joint names

2. Debts and Liabilities

- Mortgage(s)
- Credit cards, personal loans, medical debt
- **Who is responsible for each debt** (critical - creditors don't care about your agreement)
- Student loans (federal vs. private, and whose name they're in)
- Any liens or judgments

3. Spousal Support (Alimony)

- Is one spouse paying the other?
- If yes: amount, duration, termination events (remarriage, death, etc.)
- Tax treatment (post-2018 tax law changes apply)
- Modification provisions

4. Children (if applicable)

- **Custody/guardianship** of minor children
- **Child support** (amount, duration, modification)
- **Visitation/parenting time** schedule
- Healthcare/insurance decisions
- Education decisions
- The agreement must comply with Ohio child support guidelines

5. Taxes

- Who claims dependent exemptions
- Who files jointly vs. separately for final year

- Responsibility for tax liabilities

6. Retirement Accounts/Pensions

- 401(k), IRA, pension plans - how divided
- If QDRO (Qualified Domestic Relations Order) needed, agreement should state this
- Who retains what accounts

7. Health Insurance

- Who maintains coverage post-dissolution
- COBRA eligibility
- Children's coverage

8. Life Insurance

- Whether policies must be maintained
- Who is beneficiary
- Duration of obligation

9. Attorney Fees and Court Costs

- Who pays whom's attorney fees (if applicable)
- Who pays court filing fees

10. Miscellaneous

- Name change (if applicable)
- Pets/animals
- Household goods disposition
- Business interests (if any)

PROCEDURAL Requirements

Your agreement must also include:

- **Signatures of both parties** (Van's signature, notarized, while incarcerated)
- **Acknowledgment/certification** that both parties understand the terms
- **Optional attorney acknowledgments** (if either of you had counsel)
- **Date and notarization** (at minimum, parties' signatures should be notarized)

OHIO-SPECIFIC REQUIREMENTS

- **Complies with Ohio Revised Code § 3105.10** (dissolution statute)
- **Child support conforms to Ohio guidelines** (if children involved)
- **No provisions violating public policy**
- **Tax identification numbers** may be required for certain assets

RED FLAGS - Common Omissions

Courts often reject MSAs that are vague about: - “We’ll divide things fairly later” ← NOT ACCEPTABLE - No clear allocation of who pays the mortgage - Unclear on retirement account division - No mention of child support or custody (if children exist) - Ambiguous about debts - “he’ll pay his debts, she’ll pay hers” (which ones?)

What I Need From You Now

Please share:

1. **Your draft marital settlement agreement** (or tell me the key terms you’ve agreed to)
 2. **Do you have minor children?** (If yes, you must include custody/support)
 3. **What assets/debts exist?** (home, vehicles, retirement accounts, credit cards, student loans, etc.)
 4. **Is spousal support part of the deal?**
 5. **Are there any unusual circumstances?** (business, inheritance, Van’s incarceration affecting support calculation, etc.)
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Then I Can Tell You

- ✓ Whether your agreement covers everything required
- ✓ What gaps or ambiguities need fixing
- ✓ Whether it will likely be accepted by Cuyahoga County Court
- ✓ Draft any missing provisions

Please provide your settlement agreement or outline the terms, and I’ll review for completeness.

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